

Court No. - 39

Case :- WRIT - C No. - 35326 of 2014

Petitioner :- M/S Disha Industries Limited Thru' Director Ajay Paliwal

Respondent :- State Of U.P. & 3 Others

Counsel for Petitioner :- J.P. Pandey

Counsel for Respondent :- C.S.C., Amarendra Nath Singh, Nripendra Mishra

Hon'ble Krishna Murari, J.

Hon'ble Ashwani Kumar Mishra, J.

Connect and list with Writ Petition (C) No. 51884 of 2009.

Heard learned counsel for the petitioner, learned Standing Counsel for respondent no. 1, Shri Nripendra Mishra appearing for respondent nos. 2 and 3 and Shri A.N. Singh for respondent no. 4.

By means of this writ petition, the petitioner has prayed for quashing the demand notice dated 02.04.2014 issued by the respondent No. 3, for additional security.

Learned counsel for the petitioner submits that additional security has been asked under Para 4.20 of U. P. Electricity Supply Code, 2005.

Learned counsel for the petitioner further submits that similar writ petition has been entertained and interim orders have been passed by this Court.

Reference has been made to the order dated 7.10.2009 in Writ Petition No. 51844 of 2009 (M/s Supreme Ceramics Limited Versus Paschimanchal Vidyut Vitran Nigam Ltd. and others).

Learned counsel for the petitioners also submits that in several matters identical questions are involved.

In view of the interim order as already granted in writ petition No. 51844 of 2009 as referred above it is provided, without prejudice to the right and contention of the parties, until further orders of this Court, the respondents are restrained from demanding additional security from the petitioner.

List the case along with other connected matters on 21st July, 2014.

Order Date :- 11.7.2014

VKS

Court No. - 21

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Respondent :- State Of U.P. And 3 Others

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Counsel for Respondent :- C.S.C., Amarendra Nath Singh, Nripendra Mishra

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Counsel for the petitioner states that the petition has become infructuous.

It is dismissed accordingly.

Order Date :- 6.4.2023

skv

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)